

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Buren	Team: Squad #05	CCRB Case #: 202400926	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/02/2024 9:34 PM	Location of Incident: Outside 315 East 106th Street	18 Mo. SOL 7/2/2025	Precinct: 23		
Date/Time CV Reported Mon, 01/29/2024 12:18 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 01/29/2024 12:18 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Erick Estrada	11358	967497	PBMN SU PST
2. PO Edwin Nieves	16878	966738	PBMN SU PST
3. PO Alyssa Trigueno	16087	957226	PBMN SU PST
4. PO Rufian Arshad	20210	962225	PBMN SU PST

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Emanuel Crespo	16149	957496	PBMN SU PST
2. PO Osvaldo Garcia	10228	966073	PBMN SU PST
3. LT Joan Ferreira	00000	941746	028 PCT
4. PO Tyler Morales	21037	963169	PBMN SU PST
5. PO Justin Senese	21424	959978	PBMN SU PST
6. PO Ruby Esparza	11660	965711	PBMN SU PST

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Erick Estrada	Force: Police Officer Erick Estrada pointed his gun at § 87(2)(b)	A . Unable to Determine
B . PO Erick Estrada	Abuse: Police Officer Erick Estrada frisked § 87(2)(b)	B . Unable to Determine
C . PO Erick Estrada	Abuse: Police Officer Erick Estrada searched § 87(2)(b)	C . Substantiated
D . PO Erick Estrada	Abuse: Police Officer Erick Estrada frisked § 87(2)(b)	D . Substantiated
E . PO Edwin Nieves	Abuse: Police Officer Edwin Nieves frisked § 87(2)(b)	E . Substantiated
F . PO Edwin Nieves	Abuse: Police Officer Edwin Nieves searched § 87(2)(b)	F . Substantiated
G . PO Alyssa Trigueno	Abuse: Police Officer Alyssa Trigueno frisked § 87(2)(b)	G . Substantiated
H . PO Alyssa Trigueno	Abuse: Police Officer Alyssa Trigueno searched § 87(2)(b)	H . Substantiated
I . PO Erick Estrada	Abuse: Police Officer Erick Estrada questioned § 87(2)(b)	I . Unfounded
J . PO Rufian Arshad	Discourtesy: Police Officer Rufian Arshad spoke discourteously to § 87(2)(b)	J . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
K . PO Erick Estrada	Discourtesy: Police Officer Erick Estrada spoke discourteously to § 87(2)(b)	K . Substantiated
L . PO Erick Estrada	Abuse: Police Officer Erick Estrada refused to provide his shield number to § 87(2)(b)	L . Unfounded
M . PO Alyssa Trigueno	Abuse: Police Officer Alyssa Trigueno refused to provide her name to § 87(2)(b)	M . Unfounded
N . PO Alyssa Trigueno	Abuse: Police Officer Alyssa Trigueno refused to provide her shield number to § 87(2)(b)	N . Unfounded
O . PO Rufian Arshad	Abuse: Police Officer Rufian Arshad searched § 87(2)(b)	O . Substantiated
P . PO Edwin Nieves	Abuse: Police Officer Edwin Nieves failed to provide § 87(2)(b) with a business card.	P . Substantiated
Q . PO Rufian Arshad	Abuse: Police Officer Rufian Arshad failed to provide § 87(2)(b) with a business card.	Q . Substantiated
R . PO Alyssa Trigueno	Abuse: Police Officer Alyssa Trigueno failed to provide § 87(2)(b) with a business card.	R . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 29, 2024, § 87(2)(b) filed this complaint on the CCRB's website. He filed the complaint nearly a month after the incident.

On January 2, 2024, at approximately 9:34 p.m., § 87(2)(b) was at the intersection of East 106th Street and 1st Avenue in Manhattan when PO Erick Estrada, PO Edwin Nieves, PO Ruffian Arshad, and PO Alyssa Trigueno, all of the Patrol Borough Manhattan North Public Safety Team, approached to stop him for jaywalking. § 87(2)(b) fled, and the officers pursued him, eventually stopping him outside 315 East 106th Street. PO Estrada pointed his firearm at § 87(2)(b) (Allegation A: Force, unable to determine), frisked § 87(2)(b) fanny pack (Allegation B: Abuse of Authority, unable to determine), and searched § 87(2)(b) fanny pack (Allegation C: Abuse of Authority, substantiated). PO Estrada frisked § 87(2)(b) coat and pants pockets, and PO Nieves and PO Trigueno frisked and searched § 87(2)(b) coat pockets (Allegations D-H: Abuse of Authority, substantiated). PO Estrada allegedly asked § 87(2)(b) if he had drugs (Allegation I: Abuse of Authority, unfounded). PO Estrada and PO Arshad spoke discourteously to § 87(2)(b) (Allegations J-K: Discourtesy, substantiated). PO Estrada allegedly refused to provide his shield number to § 87(2)(b) and PO Trigueno allegedly refused to provide her name and shield number to § 87(2)(b) (Allegations L-N: Abuse of Authority, unfounded). PO Arshad searched § 87(2)(b) duffle bag (Allegation O: Abuse of Authority, substantiated). PO Nieves, PO Arshad, and PO Trigueno did not offer a business card to § 87(2)(b) (Allegations Q-R: Abuse of Authority, substantiated). § 87(2)(g), § 87(4-b), § 87(2)(b) PO Estrada issued § 87(2)(b) a summons for jaywalking (Board Review 01).

The investigation obtained body-worn camera (BWC) footage of the incident (Board Review 02-11, summarized at Board Review 12).

Since this incident, PO Trigueno has been reassigned to the 20th Precinct Detective Squad.

Findings and Recommendations

Allegation (B) Abuse of Authority: Police Officer Erick Estrada frisked § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Erick Estrada searched § 87(2)(b)
Allegation (D) Abuse of Authority: Police Officer Erick Estrada frisked § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Edwin Nieves frisked § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer Edwin Nieves searched § 87(2)(b)
Allegation (G) Abuse of Authority: Police Officer Alyssa Trigueno frisked § 87(2)(b)
Allegation (H) Abuse of Authority: Police Officer Alyssa Trigueno searched § 87(2)(b)
Allegation (I) Abuse of Authority: Police Officer Erick Estrada questioned § 87(2)(b)

It is undisputed that, as PO Estrada, PO Nieves, and PO Arshad exited their vehicle, § 87(2)(b) fled into the grounds of the nearby Franklin Plaza Apartment complex. He then ran back onto the sidewalk on East 106th Street, where PO Estrada stopped him.

In his interview (Board Review 13-15), § 87(2)(b) stated that he wore a black coat, which had four exterior pockets and one interior pocket. § 87(2)(b) had a small silica gel pack in the interior pocket and a charger in one of the exterior pockets. Underneath his coat, § 87(2)(b) wore a hoodie with a front pocket, which had nothing in it. He kept his debit card, ID, and MetroCard in his rear right pants pocket. § 87(2)(b) wore a fanny pack slung across his body,

which contained his wallet, deodorant, and cologne. Finally, § 87(2)(b) carried a duffle bag, which contained clothing. § 87(2)(b) denied carrying any weapons. As he walked toward the intersection, he saw an unmarked black vehicle with four occupants go past him. § 87(2)(b) ran because he feared for his safety at the sight of several unknown individuals running at him. He did not recognize the people to be officers because he did not see any NYPD markings on the officers and only saw that the individuals were wearing dark ski masks. Once § 87(2)(b) came back onto the sidewalk and saw “NYPD” on PO Estrada’s hat, he realized that the people pursuing him were police officers, and he immediately stopped. PO Estrada first reached into § 87(2)(b) exterior coat pockets, without frisking him first. He then unzipped § 87(2)(b) coat, frisked the interior coat pocket, and reached into § 87(2)(b) hoodie pocket. PO Estrada then opened § 87(2)(b) fanny pack and looked inside of it with his flashlight. He did not frisk the exterior of the bag first. Finally, PO Estrada frisked the exterior of § 87(2)(b) waistband. He did not recover any items. § 87(2)(b) maintained that PO Estrada was the only officer to frisk or search him. While PO Estrada frisked and searched § 87(2)(b) PO Estrada asked § 87(2)(b) if he had any drugs, to which § 87(2)(b) replied no.

The officers’ collective BWC footage (Board Review 02-05) does not capture § 87(2)(b) before the officers exit their vehicles. In PO Nieves’ BWC footage (Board Review 02, starting at 01:08), PO Estrada first frisks § 87(2)(b) fanny pack. When he opens the fanny pack, PO Estrada says, “What if there’s a gun in here?” PO Estrada does not ask § 87(2)(b) if he has any drugs. A screenshot from PO Nieves’ BWC shows that there are no visible bulges protruding from the fanny pack (Board Review 16). However, the clearest view of the fanny pack is only available after PO Estrada has already begun to frisk the fanny pack.

PO Estrada’s BWC footage (Board Review 04, starting at 00:33) provides a view of § 87(2)(b) fanny pack prior to PO Estrada frisking it. However, it is not a clear enough view to distinguish a discernable bulge. When PO Estrada reaches into the fanny pack, he removes what appears to be a small rectangular-shaped bottle of cologne. PO Nieves unzips § 87(2)(b) coat and reaches into § 87(2)(b) front left coat pocket. He does not remove anything from the pocket. PO Estrada also frisks § 87(2)(b) front two pants pockets. At no point in PO Estrada’s BWC footage does PO Estrada ask § 87(2)(b) if he has drugs. In PO Trigueno’s BWC footage (Board Review 03, starting at 01:14), PO Estrada frisks § 87(2)(b) two front coat pockets after he searches the fanny pack. PO Nieves walks away to search the area in the housing complex through which § 87(2)(b) fled, and PO Trigueno then frisks § 87(2)(b) coat. The view is not clear and does not capture where exactly she frisks or if she searches any coat pocket, but she appears to search § 87(2)(b) fanny pack, removing the same bottle of cologne that PO Estrada had already found.

PO Estrada prepared a Stop Report stating that § 87(2)(b) was walking in a robbery-prone location and that officers observed a rectangular-shaped object protruding from § 87(2)(b) fanny pack (Board Review 17). § 87(2)(b) bladed his body in the opposite direction of the officers and increased the pace at which he was walking to avoid police contact.

In his interview (Board Review 18-19), PO Estrada elaborated that he was in a vehicle with PO Arshad and PO Nieves. In addition to the bulge being rectangular, it weighed down the fanny pack. PO Estrada could not recall the size of the bulge. He initially believed the bulge to be a firearm because the shape of the bulge resembled a firearm. § 87(2)(b) looked over his shoulder back at the officers, began to walk faster, bladed his body by turning his torso away from the officers, and moved his fanny pack to the other side of his body, away from the officers. § 87(2)(b) movements led PO Estrada to believe that § 87(2)(b) was attempting to hide the object, which further raised PO Estrada’s suspicion that the object in the fanny pack was a firearm. PO Estrada’s suspicion increased further once § 87(2)(b) ran away from the officers. Upon finally stopping

§ 87(2)(b) PO Estrada observed the same bulge in § 87(2)(b) fanny pack that he had initially observed, but he did not observe any other bulges on § 87(2)(b) person. PO Estrada frisked the exterior of § 87(2)(b) fanny pack and felt a hard object. Though he could not recall the shape or size of the object, he still believed the object to be a firearm because § 87(2)(b) had tried to conceal the fanny pack and had fled. After not finding a weapon while searching the fanny pack, PO Estrada frisked § 87(2)(b) pockets because § 87(2)(b) may have moved the firearm when the officers lost sight of him during the pursuit. PO Estrada denied asking § 87(2)(b) if he had any drugs and denied that he suspected that § 87(2)(b) had drugs.

In his interview (Board Review 20), PO Nieves also stated that he observed a bulge in § 87(2)(b) fanny pack. However, he could not recall the shape or size of the bulge. PO Nieves could only recall that the bulge weighed down the fanny pack, as the straps to the fanny pack were pulled tightly against § 87(2)(b) body. PO Nieves initially believed the object that caused the bulge was a firearm because he had experiences where bulges were caused by firearms and because the area near East 106th Street and 1st Avenue has a high activity of shootings, gangs, and narcotic sales. PO Nieves also stated that § 87(2)(b) repeatedly looked over his shoulder toward the officers and bladed his torso away from the officers. After getting to the northwest corner of the intersection, § 87(2)(b) stopped next to a bus stop and briefly placed his duffle bag onto the ground, before picking it up and continuing to walk. PO Nieves could not recall if § 87(2)(b) opened the duffle bag or removed any items from it while it was on the ground. § 87(2)(b) looking over his shoulder, blading his body, and momentarily placing the duffle bag on the ground further raised PO Nieves' suspicion that § 87(2)(b) had a firearm in the fanny pack.

Upon finally reaching § 87(2)(b) PO Nieves observed an additional bulge in § 87(2)(b) front left coat pocket, which he had not observed prior to that point. PO Nieves described the bulge as a line which was a couple inches long. PO Nieves could not recall the shape of the bulge in any further detail and could not recall if the line was oriented vertically or horizontally. The object weighted down § 87(2)(b) coat as the left side of the coat was lower than the right side. PO Nieves believed the object in the pocket to be a firearm because he has had experiences where a line-shaped bulged turned out to be the barrel of the firearm, because the weight of the object meant that it was most likely made of metal, and because § 87(2)(b) may have moved the firearm from the fanny pack when officers lost sight of him. PO Nieves frisked the coat pocket, but he could not recall what he felt during the frisk. Nevertheless, PO Nieves reached inside the pocket. He could not recall if he found anything in the pocket.

In his interview (Board Review 21), PO Arshad recanted that he was driving the vehicle eastbound on East 106th Street. His description of the bulge in the fanny pack was similar to PO Nieves' description. PO Arshad initially believed the object causing the bulge was a firearm because § 87(2)(b) fanny pack was heavy and because a firearm is heavier than a phone or another weapon. After PO Arshad made a U-turn to approach § 87(2)(b) looked over his shoulder at the officers and placed his arm over the fanny pack. PO Arshad believed that § 87(2)(b) was trying to conceal the fanny pack from the officers, which further indicated to PO Arshad that § 87(2)(b) had a firearm in the fanny pack.

In her interview (Board Review 22), PO Trigueno stated that she was in a different vehicle, which was driving in front of PO Estrada's, PO Arshad's, and PO Nieves' vehicle. While waiting at the intersection, PO Trigueno briefly observed § 87(2)(b) fanny pack before her vehicle drove past him. She did not recall if she observed any bulges. § 87(2)(b) made eye contact with PO Trigueno, but he did not blade his body away from PO Trigueno. PO Trigueno did not observe § 87(2)(b) move his fanny pack away from her. After driving past § 87(2)(b) PO Trigueno looked behind her and saw PO Estrada, PO Nieves, and PO Arshad exiting their vehicle to

approach § 87(2)(b). The officers had not communicated via the radio, so PO Trigueno did not know why the officers were approaching § 87(2)(b). PO Trigueno pursued § 87(2)(b) to assist her fellow officers. She suspected that § 87(2)(b) had a weapon in his fanny pack because she has made arrests where the individual had a weapon inside a fanny pack and because the area near East 106th Street and 1st Avenue is a high-crime area. When she reached § 87(2)(b), PO Trigueno observed multiple officers frisking § 87(2)(b) waistband and searching his fanny pack. She did not recall if any officer was frisking or searching § 87(2)(b) front coat pockets. PO Trigueno did not see any bulges on § 87(2)(b) front two coat pockets. Despite this, PO Trigueno frisked the two front coat pockets to ensure that the officers did not miss any weapons in those pockets. She believed that there may have been a weapon in those pockets because she has prior experience of civilians keeping weapons in their front coat pockets. PO Trigueno also stated that she frisked § 87(2)(b) because he was going to be placed in handcuffs, but she acknowledged that when § 87(2)(b) was placed in handcuffs, he was not under arrest, merely detained while the officers continued to investigate. PO Trigueno did not feel anything inside the pockets when she frisked them. Despite this, she still searched the pockets to confirm that there was nothing inside the pockets.

§ 87(2)(g) the investigation was unable to determine if § 87(2)(b) bladed his body or otherwise tried to conceal the fanny pack from the officers. Although the officers had some inconsistencies between their statements, they were not so inherently contradictory that the investigation could discredit them. However, the investigation did not credit PO Nieves' claim that he observed a bulge in § 87(2)(b) front left coat pocket because both PO Trigueno and PO Estrada did not see any other bulges on § 87(2)(b) person.

Flight alone, or even in conjunction with equivocal circumstances that might justify a request for information, does not give officers reasonable suspicion. However, flight, combined with other specific circumstances indicating that the individual may be engaged in criminal activity could provide reasonable suspicion. *People v. Holmes*, 81 N.Y.2d 1056 (1993) (Board Review 23). In *People v. Gerard*, 94 A.D.3d 592 (1st Dept. 2012) (Board Review 24), officers saw a pedestrian in a high-crime area who had a weighted-down pocket bulge, and he changed course after noticing the officers and bladed his body away from them. The court found that the officers lacked reasonable suspicion to believe that the man was armed; they had, at most, founded suspicion of criminality.

To frisk an individual, an officer must reasonably suspect that the individual is armed and dangerous. Reasonable suspicion exists when the information known to the officer would make an ordinarily prudent and cautious officer under the circumstances believe that a felony or misdemeanor has been, is being or is about to be committed. When a frisk reveals an object that the officer reasonably suspects may be a weapon, the officer may search that area to remove the weapon. NYPD Patrol Guide Procedure 212-11 (Board Review 25).

§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **unable to determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations D-H** be closed as **substantiated**.

The BWC footage showed that PO Estrada did not ask § 87(2)(b) if he had drugs. It is therefore recommended that **Allegation I** be closed as **unfounded**.

Allegation (A) Force: Police Officer Erick Estrada pointed his gun at § 87(2)(b)

It is undisputed that PO Estrada pointed his firearm at § 87(2)(b) shortly before stopping him.

The portion of PO Estrada's BWC footage (Board Review 04, starting at 00:30) that captures the incident lacks audio. PO Estrada is running down the sidewalk toward § 87(2)(b) who has stopped fleeing and is standing still facing PO Estrada. PO Estrada draws his firearm and points it at § 87(2)(b) with one hand for about two seconds while still running toward him, before holstering it as he gets closer to § 87(2)(b). When PO Estrada first points his firearm, § 87(2)(b) is standing at least three car lengths away from PO Estrada. The video is difficult to discern because PO Estrada is running, so it does not show whether § 87(2)(b) makes any movements with his hands or if he reaches toward his fanny pack in the moments before PO Estrada points the gun at him. Moving through the video frame-by-frame does show, however, that § 87(2)(b) holds his empty hands up in the air almost at the same time that PO Estrada points the gun at him.

§ 87(2)(b) stated that PO Estrada did not verbally order him to stop. § 87(2)(b) stopped running and placed his hands in the air spontaneously.

PO Estrada stated that he observed § 87(2)(b) reach toward his fanny pack. PO Estrada did not observe a weapon in § 87(2)(b) hands. He believed that § 87(2)(b) was attempting to remove a firearm from the fanny pack. Therefore, PO Estrada drew and pointed his firearm at § 87(2)(b). He told § 87(2)(b) to stop reaching and to put his hands up. § 87(2)(b) complied, and PO Estrada immediately holstered his weapon.

Officers are authorized to discharge a firearm to prevent or terminate the unlawful use of force that may cause death or serious physical injury. Officers may not discharge firearms to subdue a fleeing felon who presents no threat of imminent death or serious physical injury to the officers or to another person. The decision to display or draw a firearm should be based on an articulable belief

that the potential for serious physical injury is present. When an officer determines that the potential for serious physical injury is no longer present, the officer will holster the firearm as soon as practicable. NYPD Patrol Guide Procedure 221-01 (Board Review 26).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unable to determine**.

Allegation (J) Discourtesy: Police Officer Rufian Arshad spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: Police Officer Erick Estrada spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that, while being placed in handcuffs, he asked PO Estrada why he was being handcuffed. PO Estrada replied, “Because you’re talking shit.” PO Estrada did not use any other profanity toward § 87(2)(b) and § 87(2)(b) did not allege that any other officer used profanity toward him.

In PO Estrada’s BWC footage (Board Review 04, starting at 01:00), § 87(2)(b) has his right hand up near PO Estrada’s chest. PO Arshad briefly pulls § 87(2)(b) hand down and says to him, “Yo get that shit out of his face bro.” § 87(2)(b) loudly complains about the officers frisking and searching him. PO Estrada tells § 87(2)(b) to relax, but § 87(2)(b) continues to complain. At 01:38, PO Arshad says to § 87(2)(b) “Yo, shut up, that shit is done with bro. It’s already done with. Fuck bro.” § 87(2)(b) continues to complain and speak at a high volume. At the same time, PO Arshad attempts to relay his location and instructions on where to search to PO Nieves over the radio. At 01:58, PO Arshad says to § 87(2)(b) “Yo, I will fucking... Fuck.” The middle of his sentence cannot be heard because, at the same time, PO Estrada says to § 87(2)(b) “Shut the fuck up.” PO Triguero and PO Estrada then handcuff § 87(2)(b). § 87(2)(b) asks, “Put me in cuffs?” PO Estrada replies, “Yeah, since you’re talking that much shit, you can talk more shit.”

PO Estrada stated he said, “Shut the fuck up,” to § 87(2)(b) because it slipped out during the heat of the moment as he was out of breath from running, and because he wanted § 87(2)(b) to stop speaking while PO Arshad was trying to relay their location over the radio. He said, “Since you’re talking that much shit, you can talk more shit,” to § 87(2)(b) because it slipped out as he was out of breath and because he wanted to emphasize to § 87(2)(b) that the officers needed to finish their investigation before they released § 87(2)(b).

PO Arshad similarly stated that he used profanity because it slipped out during the heat of the moment and because he wanted to emphasize to § 87(2)(b) that he needed to be quiet while he was trying to communicate over the radio.

Officers are expected to maintain a higher standard of integrity than is generally expected of others and must value human life, respect the dignity of each individual and render their services with courtesy and civility. Patrol Guide Mission, Vision, and Values (Board Review 27); NYPD

Administrative Guide Procedure 304-06 (Board Review 28). When an officer uses profanity during a stressful street encounter where they are attempting to maintain control of the situation, the police officer's verbal slip does not rise to the level of actionable misconduct. DAO-DCT Case 79627-04 (Board Review 29). When used as a generic term, the use of the word "shit" has become so common that is no longer discourteous. DAO-DCT Case 2021-23487 (Board Review 30).

§ 87(2)(g)

Therefore, it is recommended that **Allegations J-K** be closed as **substantiated**.

Allegation (L) Abuse of Authority: Police Officer Erick Estrada refused to provide his shield number to § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Alyssa Trigueno refused to provide her name to § 87(2)(b)

Allegation (N) Abuse of Authority: Police Officer Alyssa Trigueno refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) stated that, after being placed in handcuffs, he asked PO Estrada for his name and shield number. PO Estrada verbally provided his name but merely pointed at his shield number on his chest. § 87(2)(b) could not recall PO Estrada's shield number, believing it to be either 7358 or 1358. § 87(2)(b) also asked PO Trigueno for her name and shield number, but she did not provide either.

In PO Trigueno's BWC footage (Board Review 03, starting at 05:13), after § 87(2)(b) request, PO Estrada points to his shield and verbally provides his name to § 87(2)(b). § 87(2)(b) stands directly next to PO Estrada and accurately reads off his shield, "Estrada. 11358." At 09:28, § 87(2)(b) asks PO Trigueno for her name and shield number. PO Trigueno verbally provides both, to which § 87(2)(b) responds, "Copy."

PO Estrada and PO Trigueno's statements were substantially similar to the BWC footage. PO Estrada elaborated that he believed that § 87(2)(b) had received his shield number because § 87(2)(b) verbally said his shield number.

§ 87(2)(g)

The BWC footage clearly showed that PO Trigueno verbally provided her name and shield number to § 87(2)(b). Likewise, although PO Estrada merely pointed to his shield number, the BWC showed that § 87(2)(b) was standing directly next to PO Estrada and correctly read PO Estrada's shield number aloud. It is therefore recommended that **Allegations L-N** be closed as **unfounded**.

Allegation (O) Abuse of Authority: Police Officer Rufian Arshad searched § 87(2)(b)

It is undisputed that PO Arshad searched § 87(2)(b) duffle bag after returning from conducting a search of the area through which § 87(2)(b) fled.

§ 87(2)(b) did not state in his CCRB interview whether he provided consent to search his duffle

bag to any officer.

In PO Arshad's BWC footage (Board Review 05, starting at 02:25), PO Arshad leaves to conduct a search of the area. In PO Estrada's BWC footage (Board Review 04, starting at 02:30), after PO Arshad has already left to conduct the search, § 87(2)(b) says to PO Estrada, "You wanna check my duffle bag too? Y'all can check my duffle bag too." PO Estrada does not ask § 87(2)(b) for his consent prior to § 87(2)(b) providing consent, and he does not explain to § 87(2)(b) that his duffle bag will not be searched if he does not consent to it. PO Arshad's BWC footage comprehensively captures PO Arshad's search (Board Review 05, starting at 12:40). At no point does any officer tell PO Arshad that § 87(2)(b) provided consent to search his duffle bag. At 12:40, PO Arshad returns from searching the area through which § 87(2)(b) fled and picks up § 87(2)(b) duffle bag from the ground. He briefly frisks the sides of the bag before searching it. PO Arshad searches the bag without any officer having told him that § 87(2)(b) provided consent to search the bag.

PO Arshad stated that he believed that § 87(2)(b) may have transferred the firearm into the duffle bag when the officers lost sight of him during the foot pursuit. Furthermore, when PO Arshad was returning from searching § 87(2)(b) flight route, an officer told him that § 87(2)(b) had given consent to PO Estrada to search the duffle bag. PO Arshad could not recall which officer told him this. PO Arshad searched the bag because he believed it might contain a firearm and because he had § 87(2)(b) consent to do so. When PO Arshad initially frisked the exterior of the bag, there were too many items inside the bag for him to determine if there was an item which felt like a firearm.

The investigation determined that PO Arshad was mistaken in his recollection of an officer telling him that § 87(2)(b) had consented to a search of his duffle bag, as PO Arshad's BWC footage did not capture any officer making such a statement to PO Arshad.

An officer cannot frisk a bag or item of personal property unless the officer has a reasonable suspicion that the person is armed and dangerous, and the bag or item could contain a weapon and is within the person's reach. When a frisk reveals an object that the officer reasonably suspects may be a weapon, the officer may search that area to remove the weapon. Officers can also search a bag when they have voluntary consent. NYPD Patrol Guide Procedure 212-11 (Board Review 25).

§ 87(2)(g)

It is therefore recommended that **Allegation O** be closed as substantiated.

Allegation (P) Abuse of Authority: Police Officer Edwin Nieves failed to provide § 87(2)(b) with a business card.

Allegation (Q) Abuse of Authority: Police Officer Rufian Arshad failed to provide § 87(2)(b) with a business card.

Allegation (R) Abuse of Authority: Police Officer Alyssa Trigueno failed to provide § 87(2)(b) with a business card.

It is undisputed that PO Nieves, PO Arshad, and PO Trigueno did not offer a business card to § 87(2)(b) at the conclusion of this incident.

PO Nieves, PO Arshad, and PO Trigueno all stated that they did not proactively offer a business card to § 87(2)(b) because the incident resulted in PO Estrada issuing a summons to § 87(2)(b) and thus they were not required to proactively offer business cards.

After any encounter in which an officer frisks or searches a civilian, the officer is required to proactively offer the civilian a business card if the activity does not result in an arrest or summons. NYC Administrative Code §14-174 (Board Review 31).

While it is correct that the incident resulted in the issuance of a summons to § 87(2)(b) the Right To Know Act is focused upon ensuring that civilians who are the subjects of particular law enforcement activities will obtain the identifying information for each officer who participated in those activities. § 87(2)(g)

It is therefore recommended that **Allegations P-R** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Nieves has been a member of the NYPD for six years and has been a subject in five other CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Estrada has been a member of the NYPD for five years and has been a subject in eight other CCRB complaints and 16 other allegations, of which one was substantiated:
 - 202103998 involved a substantiated entry of premises allegation against PO Estrada. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g) 202404074, 202404649, and 202405412 are all ongoing investigations.
- PO Arshad has been a member of the NYPD for eight years and has been a subject in six other CCRB complaints and 18 other allegations, of which two were substantiated:
 - 202001243 involved a substantiated discourtesy allegation against PO Arshad. The Board recommended Instructions and the NYPD imposed Instructions.
 - 202201414 involved a substantiated discourtesy allegation against PO Arshad. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - § 87(2)(g) 202403438 are ongoing investigations.
- PO Trigueno has been a member of the NYPD for ten years and has been a subject in seven other CCRB complaints and 17 other allegations, of which one was substantiated:

- 202307187 involved a substantiated frisk allegation against PO Trigueno. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
- § 87(2)(g) 202401635 are all ongoing investigations.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- October 1, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 34).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Henry Buren</u>	<u>Inv. Henry Buren</u>	<u>November 19, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>November 19, 2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date